LEGAL STORIES FROM ABIDJAN

The Missing Will

MOUHAMADOU CISSEMA



LEGAL STORIES FROM ABIDJAN · BOOK ONE

The Missing Will

A legal novel

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ÉDITIONS LISÂN

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This is a work of fiction. The characters, the law firm Kouassi & Traoré, the cases and the court decisions in this book are invented; any resemblance to real persons is coincidental. The legal rules mentioned in the story are explained simply for learners and do not replace the advice of a lawyer.

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To every student
who asks the right question
on the very first day.

Contents

PART ONE · THE WIDOW

Prologue The Planter 12
Chapter One First Saturday 14
Chapter Two The Family Council 17
Chapter Three The Voice of Today 20

PART TWO · THE SEARCH

Chapter Four The Road to Bouaké 24
Chapter Five The Notary's Register 27
Chapter Six The Lawsuit 30
Chapter Seven The Witnesses 33

PART THREE · THE JUDGMENT

Chapter Eight The Hearing 38
Chapter Nine Waiting 41
Chapter Ten Espérance 44
Epilogue The Field by the River 47

NOTES DE LECTURE

Le droit derrière l'histoire 51
Lexique, chapitre par chapitre 53
Questions de lecture et réponses 57

The People in the Story

Moussa Diarra, nineteen, a first-year law student and an intern at Kouassi & Traoré.

Maître Aïcha Traoré, a lawyer at the Abidjan bar. She believes in facts, dates and evidence.

Maître Paul Kouassi, the senior partner: a white beard, a cup of tea, a Latin proverb.

Akissi Yao, a schoolteacher in Bouaké, the widow of Konan Yao.

Konan Yao, a cocoa planter near Bouaké who could not read.

Gervais Yao, Konan's nephew, the owner of two minibuses.

Nanan Ahou, Konan's elder sister and Gervais's mother, the oldest woman of the family.

Mr. Ernest Kouamé, a retired headmaster, Konan's best friend.

Maître Dosso, a notary in Bouaké, behind a blue door near the big market.

Mrs. Henriette Gbané, a retired pharmacist.

Dr. Sylvie Fofana, a cardiologist at the hospital of Bouaké.

Maître Diby, Gervais's lawyer.

Judge Marie-Claire Assi, the presiding judge of the court in Bouaké.

Au lecteur

Ce roman est écrit en anglais simple, de niveau B1, pour les étudiants qui veulent apprendre la langue du droit en suivant une histoire. Il se déroule en Côte d'Ivoire, entre Abidjan et Bouaké, et suit une affaire de succession du premier rendez-vous au jugement.

Lisez chaque chapitre d'une traite, sans vous arrêter sur chaque mot inconnu : le sens vient souvent de la phrase suivante. Relisez ensuite le chapitre avec le lexique et les questions de lecture placés à la fin du livre.

Sur Lisân Campus, chaque chapitre s'écoute en entier, chaque paragraphe a sa traduction française, et un court exercice vérifie votre compréhension.

PART ONE

The Widow





PROLOGUE

The Planter

THE MORNING MIST was still lying between the cocoa trees when Konan Yao walked out of his house. He was fifty-six years old, strong, with grey hair at the temples, and he knew every tree on his land. His father had planted the first ones. He had planted the others, one by one, for thirty years.

He stopped near the river, at the end of the second plantation, and looked at the water. Here, the soil was black and rich. Here, as a boy, he had fished with his cousins. And here, the night before, he had made a decision.

For years, his family had repeated the old saying: in their tradition, a man's land goes to the son of his sister. His nephew Gervais had grown up with that idea. But Konan had a wife now, Akissi, a schoolteacher with a quiet voice and a strong heart. They had been married for four years. They had no children yet, but they had not lost hope.

“Custom is the voice of our ancestors,” Konan said to the river. “But the law is the voice of today.” He had heard a lawyer say that on the radio, and the words had stayed with him.

That afternoon, he put on his best shirt, took the bus to the centre of Bouaké, and pushed open a blue door near the big market. Above the door, a small sign said: Maître Dosso, Notary. He stayed inside for one hour. When he came out, he was smiling.

In the evening, he told Akissi only one sentence: “I went to the notary today. Whatever happens, you will not be alone.” She laughed and told him not to speak of sad things. He laughed too. Neither of them could imagine that, two years later, those words would matter so much.



CHAPTER ONE

First Saturday

TWO YEARS LATER, on a rainy Saturday in June, Moussa Diarra climbed the stairs of an old building in the Plateau district of Abidjan. He was nineteen, a first-year law student, and he was wearing his only tie. On the third floor, a brass plate shone next to a wooden door: Kouassi & Traoré, Lawyers.

Inside, the office smelled of coffee and old paper. Files were piled on every chair. Behind a desk, a woman in her thirties, with short hair and reading glasses, looked up. “You must be Moussa,” she said. “I am Aïcha Traoré. Professor Kouadio told me you ask good questions. Here, you will also have to listen.”

From the next room came a deep, calm voice. “And to listen well, young man, you must first close your mouth.” An older man appeared at the door, tall and thin, with a white beard and a cup of tea in his hand. This was Maître Paul Kouassi, the senior partner. He

shook Moussa's hand warmly. "Welcome to the oldest small firm in the Plateau."

At ten o'clock, someone knocked. A young woman entered, dressed in a dark pagne, a small bag pressed against her chest. Her eyes were tired, as if she had not slept. "Good morning," she said softly. "My name is Akissi Yao. I came from Bouaké on the night bus. I was told you help people who have no one to help them."

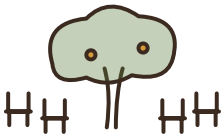
Maître Traoré offered her a chair and a glass of water. Moussa took out a notebook. Akissi began to speak. Three weeks earlier, her husband, Konan Yao, had died of a heart attack in his plantation. He was fifty-eight. The funeral had taken place in the village. And the day after the funeral, his nephew Gervais had come to the house.

"He said the house and the plantations are his now," Akissi explained. "He said that, by custom, the nephew inherits, and that a wife without children has no rights. He gave me one month to leave." Her voice broke. "Six years of marriage, and I must leave like a stranger."

"Were you legally married?" asked Maître Traoré gently. "At the town hall of Bouaké." "Did your husband ever speak of a will?" Akissi hesitated. "Two years ago, he told me he had gone to a notary. He said I would never be alone. But I never saw any paper, and I do not know which notary."

Moussa looked at his notes, then at the young woman. Something in her words bothered him. “Excuse me, madam,” he said. “Your nephew says you have no children. Is that true?” Akissi put a hand on her belly. For the first time, she almost smiled. “Not yet. I am four months pregnant. Konan learned the news one week before he died. He danced in the courtyard like a young man.”

Maître Traoré and Maître Kouassi exchanged a long look. “Mrs. Yao,” said the old lawyer slowly, “go and rest. Leave us your phone number. You did well to come.”



CHAPTER TWO

The Family Council

THE FOLLOWING SUNDAY, the family of Konan Yao gathered in the courtyard of the house in Bouaké. Plastic chairs had been placed in a circle under the mango tree. The elders sat in the shade. The younger ones stood behind them. Akissi sat alone on a bench near the kitchen.

Gervais arrived last, in a white shirt, with the keys of his minibus in his hand. He was thirty-five, broad-shouldered, and he had the loud laugh of a man who liked to be noticed. He owned two minibuses that carried passengers between Bouaké and Yamoussoukro. People in the family said he also had debts.

The oldest woman of the family, Nanan Ahou, raised her hand, and everyone fell silent. She was Konan's elder sister and Gervais's mother. "My brother is gone," she said. "May he rest in peace. Our fathers taught us that the land of a man goes to the son of his sister. It has

always been so. The house and the plantations will go to Gervais."

A murmur of agreement went around the circle. Akissi stood up. Her hands were shaking, but her voice was clear. "Nanan, I respect you. But Konan was my husband. We were married at the town hall. And I carry his child."

The silence that followed was heavy. Gervais laughed, but this time his laugh was short. "A child that is not born is not a person," he said. "And even if it is born, custom is custom. You can stay until the end of the month. After that, I will change the locks."

An old man who had said nothing until then coughed softly. It was Mr. Ernest Kouamé, a retired headmaster and Konan's best friend. "Gervais," he said, "the world has changed. Today, there is a law for these things, and the law is the same for everybody." Gervais shrugged. "The law is far away, in Abidjan. Here, we are in the family."

When everyone had left, Mr. Kouamé stayed a little longer. He sat next to Akissi on the bench. "Konan was a careful man," he said in a low voice. "Two years ago, he asked me to come with him to town one afternoon. He did not tell me why at first. I think you should look for that afternoon, my daughter."

That night, Akissi called Abidjan. She repeated the old man's words to Maître Traoré. On the other end of

the line, the lawyer was silent for a moment. Then she said: "Mrs. Yao, do not leave the house. We are coming."



CHAPTER THREE

The Voice of Today

ON MONDAY MORNING, Moussa arrived at the office before eight. Maître Traoré was already there, with three thick books open on her desk. "Sit down," she said. "Before we go to Bouaké, you must understand the case. Tell me: what does Gervais say?"

Moussa thought for a moment. "Two things. First, that custom gives the land to the nephew. Second, that the widow has no rights because she has no child." "Good. Now, the first point. In our country, which rules decide who inherits?"

"The law," said Moussa. "Since the reforms of 1964, inheritance is decided by the law, not by custom. And today, there is the law of 2019 on successions." Maître Traoré nodded. "Exactly. Custom remains important in many parts of life. But in matters of inheritance, it no longer decides. The law protects the wife and the children of the deceased."

"And the second point?" asked Moussa. "The baby is not born yet." She pulled a small red book towards her and opened it at a page covered with notes. "Read this." Moussa read aloud, slowly: "Infans conceptus pro nato habetur, quoties de commodis ejus agitur."

"A child who is conceived is treated as born whenever it is in the child's interest," said Maître Traoré. "It is a very old rule, from Roman law. The child of Konan Yao was conceived before his father's death. So, if that child is born alive, the child is an heir, exactly like a child born before."

"Born alive," repeated Moussa. "That is the only condition?" "Born alive. The law even says how to calculate the date of conception: between the three hundredth and the one hundred and eightieth day before the birth." Moussa wrote everything in his notebook, underlining the numbers twice.

"Then Gervais has already lost," he said. Maître Kouassi, who was passing by the door with his cup of tea, stopped. "Young man," he said, "in this office, we never say that before the judge has spoken. Gervais will say that the marriage was not valid, that the child is not Konan's, that the widow is lying. A case is not won with good rules. It is won with good proof."

Maître Traoré closed the red book. "He is right. We need three things: the marriage certificate, a medical certificate for the pregnancy, and above all, the will, if it

exists. Mr. Kouamé spoke of an afternoon in town, two years ago. Konan went to a notary. We must find which one." She looked at her watch. "The bus to Bouaké leaves at one o'clock. Go home and pack a bag."

PART TWO

The Search





CHAPTER FOUR

The Road to Bouaké

THE BUS LEFT Adjamé station at one o'clock exactly, which surprised everybody, including the driver. Moussa sat by the window. Maître Traoré sat next to him with a file on her knees. Behind them, a woman was selling bread and boiled eggs, and a radio was playing coupé-décalé.

For an hour, nobody spoke. Then Maître Traoré closed the file. "Moussa, what do we know for certain?" He counted on his fingers. "Konan Yao is dead. He was married to Akissi. She is pregnant. Two years ago, he went to a notary in Bouaké with Mr. Kouamé." "And what do we not know?" "Which notary. And what he signed."

"Good," she said. "Students always want to start with the law. A lawyer starts with the facts. The law is like a key: it is useless if you do not know which door you want to open." Moussa smiled and wrote the sentence in his

notebook. He was starting to understand why Professor Kouadio had sent him here.

The road went north, through green forests, then through lighter land with tall grass and red earth. Villages passed: children waving, women carrying basins on their heads, piles of yams by the roadside. At Tiébissou, the bus stopped for twenty minutes, and Moussa bought grilled corn for both of them.

* * *

They arrived in Bouaké at sunset. Akissi was waiting for them at the station, with Mr. Kouamé. The old headmaster wore a cap and leaned on a walking stick, but his handshake was firm. “Welcome to Bouaké, Maître,” he said. “I have been thinking since Sunday. I think I remember now.”

They sat in a small maquis near the station, under a tin roof. Mr. Kouamé spoke slowly, as if he were reading from an old book. “It was in March, two years ago. Konan came to my house after lunch. He said: Ernest, I need a man I trust. We took a taxi to the centre, near the big market. We entered a building with a blue door.”

“Was there a woman with you?” asked Maître Traoré. Mr. Kouamé raised his eyebrows. “How did you know? Yes. The pharmacist from the corner, Madam Gbané. The notary needed two people. Konan spoke for a long time, and the notary wrote. Then he read everything

aloud, and we signed. Konan asked us not to say anything. I kept my promise. But Konan is dead now, and a promise to a dead man must not hurt his wife."

Moussa looked at Maître Traoré. Her face showed nothing, but under the table, her foot was tapping. "Two witnesses, a notary who writes and reads aloud," she said quietly. "Mr. Kouamé, I think you have just described an authentic will."



CHAPTER FIVE

The Notary's Register

THE NEXT MORNING, they found the blue door easily. It was between a cloth shop and a phone repair stand, a few steps from the big market. The sign above it had faded in the sun, but it could still be read: Maître Dosso, Notary. Inside, the air was cool. A young clerk asked them to wait on a wooden bench.

On the wall, Moussa read a framed notice: "The notary keeps the original of every act. The parties receive certified copies." He thought about the word original. If Konan's will existed, the true paper was here, somewhere behind these walls.

Maître Dosso was an old man with white hair and round glasses that he constantly pushed up his nose. He listened to Maître Traoré without interrupting, then asked to see the death certificate. He read it carefully. "Mr. Konan Yao," he said. "I remember him. A planter. He laughed a lot. Ali, bring me the register for that year."

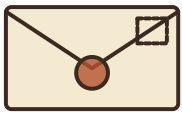
The clerk came back with a large green register. Maître Dosso turned the pages slowly, following the lines with his finger. Moussa held his breath. Akissi had closed her eyes. “Here,” said the notary at last. “The twelfth of March. Will of Mr. Konan Yao. Authentic will, dictated by the testator, written by me, read back to him, in the presence of two witnesses: Mr. Ernest Kouamé and Mrs. Henriette Gbané.”

Akissi opened her eyes. They were full of tears. Maître Dosso went to a heavy metal safe in the corner, opened it with two keys, and came back with a thin folder. He put on his glasses and read in a solemn voice: “I leave my house in Bouaké to my wife, Akissi Yao. My children, born or to be born, will share my two cocoa plantations equally. I leave the field by the river to my nephew, Gervais Yao, so that he remembers the days when we fished there together.”

“Born or to be born,” whispered Moussa. “He was already thinking of the baby.” “He was thinking of every child he hoped to have,” said Maître Traoré. “That is what a good will does. It thinks ahead.”

At that moment, the street door opened violently. Gervais stood in the doorway, out of breath. Someone at the market had seen Akissi enter. “What are you reading?” he shouted. “That paper is a forgery! My uncle could not even read! You wrote it yourselves!”

Maître Dosso did not raise his voice. "Sir, your uncle did not need to read. He dictated, I wrote, I read the text back to him, and two witnesses signed in front of me. It is my job, and I have done it for forty years." Maître Traoré stood up. "An authentic deed is very strong evidence, Mr. Yao. If you believe it is false, you have the right to go to court and prove it." Gervais looked at each of them, then at Akissi. "Then I will see you in court," he said, and he left, slamming the blue door.



CHAPTER SIX

The Lawsuit

TEN DAYS LATER, back in Abidjan, Moussa found Maître Traoré in her office, reading a document with a frown. "It has arrived," she said, and handed it to him. It was a summons. Gervais Yao was suing Akissi Yao before the court of first instance of Bouaké. He asked the court to cancel the will.

Moussa read quickly, then slowly. "He no longer says it is a forgery," he noticed. "No," said Maître Traoré. "His lawyer is smarter than he is. To attack an authentic deed as a forgery, you need a special and very difficult procedure. So they have chosen another road. Read the second page."

On the second page, Gervais's lawyer, a certain Maître Diby, explained that in March, two years earlier, Konan Yao was seriously ill. He took medicine every day for his blood pressure. According to the summons, he was tired, confused, and not of sound mind. A man who is not of sound mind cannot make a valid will.

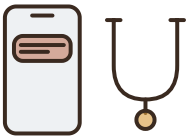
“Is that true?” asked Moussa. “That is exactly the question,” said Maître Kouassi from the doorway. He came in and sat down heavily. “Being ill is one thing. Being of unsound mind is another. Many sick people have perfectly clear minds. The law asks only one thing: did the testator understand what he was doing when he signed?”

“And who must prove it?” asked Moussa. Maître Kouassi smiled, as if Moussa had found the right question at last. “Tell me, student. Who asks the court to cancel the will?” “Gervais.” “So who must prove that his uncle was not of sound mind?” “Gervais,” said Moussa. “The one who makes a claim must prove it.” “Actori incumbit probatio,” said the old lawyer, raising his cup of tea.

“But we will not wait for him,” said Maître Traoré. “A good defense does not only answer. It also brings its own evidence.” She took a sheet of paper and wrote three lines. “One: the medical file of Konan Yao, from the hospital of Bouaké. Two: the testimony of the two witnesses. Three: the testimony of the notary himself.”

“The hearing is set for the fifteenth of September,” she continued. “We have three months. Moussa, you will prepare the file with me. Every piece of evidence, every date, every name. A file is like a house: if one wall is weak, everything falls.” Moussa nodded. That night,

he did not go to the cinema with his friends. He read the law on wills until two in the morning.



CHAPTER SEVEN

The Witnesses

In August, Moussa and Maître Traoré returned to Bouaké. Their first visit was to the hospital. Dr. Sylvie Fofana, a cardiologist with a calm smile, had followed Konan Yao for five years. She opened his file on her computer. "High blood pressure," she read. "Well controlled with medicine. He came every three months. In March, two years ago, his last visit was on the fifth."

"One week before the will," said Moussa. "How was he that day?" The doctor read her notes. "Good general condition. Fully conscious. Asks many questions about his treatment. Jokes with the nurses." She looked up and smiled. "I remember him. He told me that day that he wanted to put his affairs in order, because a wise man prepares the roof before the rain."

Dr. Fofana agreed to write a medical certificate. Maître Traoré thanked her warmly. Outside, in the hot street, she turned to Moussa. "Do you see? Gervais says

ill. The doctor says ill, but clear. One word can change a whole case."

* * *

The second visit was harder. The pharmacy at the corner of the street had a new owner. Mrs. Henriette Gbané had moved to Yamoussoukro the year before, to be near her daughter. Nobody had her phone number. Moussa spent the whole afternoon asking questions: the neighbors, the market women, the priest of the nearby church.

At six o'clock, an old market woman selling attiéké finally remembered. "Her daughter is a nurse at the hospital of Yamoussoukro," she said. "Her name is Grâce." The next day, after two phone calls and a long wait, Moussa heard a gentle voice on the line. "Yes, I am Henriette Gbané. Yes, I remember Mr. Yao. Of course I will come. I signed that paper. I will say so in front of anyone."

* * *

That same evening, Akissi received a message on her phone, from a number she did not know: "Tell your witnesses to stay at home. The family does not forget." She showed it to Maître Traoré with trembling hands. The lawyer read it twice, took a photo of the screen, and wrote down the number and the time.

“Pressure on witnesses is an offense,” she said calmly. “We will tell the judge. And tomorrow, we will tell the police.” Then she put a hand on Akissi’s shoulder. “People who threaten are usually people who are afraid. Gervais knows that the truth is not on his side.”

* * *

On the bus back to Abidjan, Moussa opened his notebook and wrote: “The doctor: ill, but clear. The witnesses: present and willing. The notary: forty years of experience. The threat: proof of fear.” Then, after a moment, he added a line that made him smile: “A file is like a house. Ours has four walls now.”

PART THREE

The Judgment





CHAPTER EIGHT

The Hearing

THE COURTHOUSE OF Bouaké was a long white building with tall windows and a flag that hung still in the hot air. On the fifteenth of September, at eight in the morning, the benches of courtroom number two were already full. Half of Konan's family had come. They sat on the left, behind Gervais. Akissi sat on the right, alone, until Mr. Kouamé came to sit beside her.

Moussa sat behind Maître Traoré, holding the file on his knees as if it were made of glass. She wore her black gown, and he had never seen her so calm. On the other side, Maître Diby, Gervais's lawyer, a tall man with a gold watch, was talking loudly with his client. "He wants the family to hear him," Maître Traoré whispered. "We want the judge to hear us. It is not the same audience."

"The court!" called the usher, and everyone stood up. Judge Marie-Claire Assi entered, a small woman of

about fifty, with silver earrings and a face that showed nothing. She sat down, opened the file, and looked at the room over her glasses. “Case number 214. Yao Gervais against Yao Akissi. Maître Diby, you are the claimant’s lawyer. We are listening.”

Maître Diby spoke for twenty minutes. He spoke of tradition, of the ancestors, of a nephew raised as a son. Then he spoke of illness: the pills every morning, the fatigue, the doctor’s visits. “A sick man, Madam President, is a weak man. And a weak man signs what others put in front of him.” On the left, several heads nodded.

Then Maître Traoré stood up. She did not speak of the ancestors. She spoke of dates. “On the fifth of March, Dr. Fofana wrote: fully conscious, asks many questions, jokes with the nurses. On the twelfth of March, Mr. Yao dictated his will to Maître Dosso, who read it back to him, in the presence of two witnesses. I ask the court to hear them.”

Mrs. Henriette Gbané came to the bar. She was small and grey-haired, and she held her handbag with both hands. Maître Diby stood up. “Madam, two years have passed. How can you be sure that Mr. Yao understood what he was signing?” The old pharmacist looked at him for a long moment. “Because he corrected the notary, sir.”

The room went silent. “When Maître Dosso read the text aloud,” she continued, “he said: the field near the

road. Mr. Yao stopped him and laughed. He said: no, no, the field by the river, where we used to fish, Gervais and I. The notary corrected it. A confused man does not correct a notary, sir." On the left bench, Gervais lowered his head.

Mr. Kouamé confirmed every word. Maître Dosso came with the green register and explained, in his slow voice, how an authentic will is made. Then Maître Traoré mentioned the anonymous message. The judge raised her eyes. "Pressure on witnesses is a serious matter, Maître Diby. I hope your client understands that." Maître Diby did not answer. At noon, Judge Assi closed the file. "The case is reserved for judgment. The decision will be delivered on the twentieth of October."



CHAPTER NINE

Waiting

WAITING, MOUSSA DISCOVERED, is also part of a lawyer's work. Back in Abidjan, he returned to the lecture halls of the university, to the crowded buses and the photocopied course notes. But every evening, he checked his phone, as if the judgment could arrive by message.

In his civil law class, the professor spoke about the sources of law: the law, custom, case law. Moussa raised his hand, something he had never done before. "Sir, when custom and the law say different things, which one does the judge follow?" The professor smiled. "Excellent question. In matters of inheritance, the law. Custom can complete the law, but it cannot go against it." Moussa wrote it down and underlined it twice.

* * *

In Bouaké, Akissi was preparing a small room for the baby. Mr. Kouamé had repainted the walls in pale yell-

ow. The women of the neighborhood brought clothes, a basin, a mosquito net. Even Nanan Ahou sent a pagne, without a word, through a little girl. Akissi folded it carefully and put it in the cupboard.

Gervais, meanwhile, was not sleeping well. One of his minibuses had broken down, and the bank was calling every week. One night, he drove to the river and sat for a long time in the field his uncle had left him. He remembered the fishing lines, the laughter, the fried fish they ate on the bank. “So that he remembers,” the will said. He remembered.

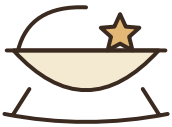
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On the twentieth of October, the courtroom was half empty. The family had not come back. Judge Assi read the decision in a clear, even voice. Moussa held his breath at every sentence, trying to guess the end before it came.

“Whereas the will of the twelfth of March was received by a notary in the authentic form, in the presence of two witnesses; whereas the medical certificate establishes that the testator was fully conscious one week before; whereas the testimony of Mrs. Gbané shows that he understood and corrected the text; whereas the claimant brings no evidence of any disorder of the mind…”

"For these reasons, the court rejects the claim of Mr. Gervais Yao; declares the will of Mr. Konan Yao valid; orders that it be carried out according to its terms, including in favor of the child conceived and to be born; and orders the claimant to pay the costs." Akissi put both hands on her belly and closed her eyes. Maître Traoré gently touched her arm. Moussa, behind them, realized he had been holding his pen so hard that his fingers hurt.

Outside, on the courthouse steps, Maître Traoré turned to him. "Gervais has one month to appeal." "Will he?" "I do not know. A judgment ends a case. It does not always end a conflict." She put on her sunglasses. "That part, Moussa, is not in any code."



CHAPTER TEN

Espérance

THE BABY WAS born on a Tuesday night in November, at the hospital of Bouaké, while the first winds of the harmattan were blowing dust across the city. It was a girl, small and loud, with her father's wide forehead. Dr. Fofana came down from the cardiology floor to see her. "Born alive and in good health," she said with a wink. "Your lawyer will be pleased."

Akissi named her Espérance. "Because her father hoped for her before she existed," she explained to Mr. Kouamé, "and because he wrote her name in his will without knowing it: born or to be born." The old headmaster took off his cap and held the baby very carefully, as if she were the most precious document in the world.

* * *

Maître Traoré and Moussa arrived from Abidjan on Saturday, with flowers and a small bracelet engraved with the baby's name. Moussa had never held a newborn. He

was so afraid of dropping her that everyone laughed, and Espérance, offended, began to cry.

Then there was a knock at the door. Gervais stood in the corridor, without his loud laugh, holding a basket of oranges and a small envelope. Behind him, leaning on his arm, was Nanan Ahou. For a moment, nobody moved. Then Akissi said: “Come in. She is your family too.”

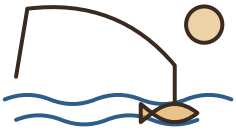
Nanan Ahou sat down and took the baby in her old hands. She looked at her for a long time, then said something softly in Baoulé that made Akissi cry. Gervais stayed standing near the door. “I did not send that message,” he said at last. “It was my cousin. But I let him do it, so it is the same. I am ashamed.”

He gave the envelope to Maître Traoré. Inside, there was a letter from Maître Diby: Mr. Gervais Yao would not appeal. “My uncle gave me the field by the river,” Gervais said. “I went there every night this month. I think he knew me better than I knew myself. He did not give me land to fight. He gave me a memory to keep.”

Akissi looked at him for a long time. Then she said something that surprised everyone. “The plantations belong to Espérance now. But she is too small to work them, and I am a teacher, not a planter. Konan trusted you with the river. Will you help me with the cocoa? For a fair salary, with a written contract.” Maître Traoré

smiled. “With a written contract,” she repeated. “I will draft it myself.”

Gervais nodded. He could not speak. Moussa, by the window, quietly took out his notebook. He did not write a rule of law this time. He wrote only: “The judge decided who was right. The family decided how to live together.”



EPILOGUE

The Field by the River

EIGHT MONTHS LATER, in July, Moussa Diarra received his results: he had passed his first year of law with honors. Professor Kouadio congratulated him in the corridor. “I heard about the Yao case,” he said. “Maître Traoré says you asked the right question on your first day.” Moussa smiled. “I only asked if the baby existed.” “That is the right question, young man. Who exists for the law, and from when.”

* * *

The following Sunday, he took the bus to Bouaké one last time before the holidays. Akissi had invited the whole office. Maître Kouassi had refused the long trip at first, then came anyway, with a thermos of tea and a straw hat.

They found Gervais at the river, at the end of the second plantation, with a fishing line in the water. Espérance, eight months old, sat on a mat in the shade,

chewing a wooden spoon. Nanan Ahou watched her from a plastic chair. The cocoa trees were heavy with green pods. “A good season,” said Gervais. “Better than last year. The contract says I keep a share of the profit. Maître Traoré is a hard negotiator.”

They ate fried fish on the bank, as Konan and Gervais used to do. Maître Kouassi told stories of old cases, each one ending with a Latin proverb. Mr. Kouamé corrected his Latin. Everyone laughed. For a moment, Moussa thought he could almost hear another laugh among theirs, the laugh of a planter who had prepared the roof before the rain.

Later, when the sun was low, Maître Traoré sat next to him on the bank. “So, Moussa. What have you learned this year?” He thought for a long time. “That a lawyer starts with the facts. That the one who makes a claim must prove it. That a child who is conceived is treated as born. And that a good will is written with love, not with anger.”

“Good,” she said. “And one more thing. Custom is the voice of our ancestors. The law is the voice of today. A good lawyer must hear both, and know which one the judge will follow.” She stood up and brushed the sand from her skirt. “Come. In September, we have a new case. A locked door, a landlord, and a tenant who will not leave.”

Moussa took out his notebook one last time and wrote, on the first empty page: “Case number two.” Then he closed it, and followed her up the path between the cocoa trees, towards the house where a little girl named Espérance was beginning to say her first words.

Le droit derrière l'histoire

Les règles qui font avancer le récit, expliquées simplement.

La coutume et la loi

Depuis les réformes de 1964, les successions ne sont plus réglées par la coutume mais par la loi, aujourd'hui la loi de 2019 relative aux successions. La coutume garde une place dans la vie familiale, mais elle ne peut pas aller contre la loi : c'est ce que Gervais refuse d'abord d'admettre.

L'enfant conçu

Selon l'adage *infans conceptus pro nato habetur quoties de commodis ejus agitur*, l'enfant simplement conçu est considéré comme né chaque fois qu'il y va de son intérêt, à condition de naître vivant. La conception est présumée avoir eu lieu entre le trois-centième et le cent-quatre-vingtième jour avant la naissance. Espérance, conçue avant la mort de son père, peut donc hériter de lui.

Le testament authentique

Konan ne sait pas lire : il dicte ses volontés à un notaire, qui les écrit, les lui relit, puis les fait signer en présence de deux témoins. L'original reste chez le notaire. Un tel

acte authentique est une preuve très forte : on ne peut le contester comme faux que par une procédure spéciale, l'inscription de faux.

La preuve

Actori incumbit probatio : la preuve incombe au demandeur. C'est Gervais qui demande l'annulation du testament ; c'est donc à lui de prouver que son oncle n'était pas sain d'esprit. La défense apporte néanmoins ses propres preuves : certificat médical, témoins, registre du notaire.

Le procès

L'assignation saisit le tribunal de première instance. À l'audience, chaque avocat plaide, les témoins sont entendus, puis l'affaire est mise en délibéré. Le jugement se compose de motifs (« attendu que… ») et d'un dispositif (« par ces motifs… »). La partie qui perd supporte en principe les dépens et dispose d'un délai, en principe d'un mois, pour faire appel.

Les témoins

Faire pression sur un témoin pour l'empêcher de déposer est une infraction. Maître Traoré conserve la preuve du message (capture d'écran, numéro, heure) et la signale au juge et à la police.

Lexique, chapitre par chapitre

Les mots clés de chaque chapitre, puis ses expressions.

Prologue · *The Planter*

a plantation une plantation · **a nephew** un neveu · **custom** la coutume · **the law** la loi, le droit · **a notary** un notaire · **whatever happens** quoi qu'il arrive

custom / **a custom** *la coutume / une coutume* · **the law** / **a law** *le droit, la loi / une loi* · **to make a decision** *prendre une décision*

Chapter One · *First Saturday*

a law firm un cabinet d'avocats · **the senior partner** l'associé principal · **a widow** une veuve · **to inherit** hériter · **a will** un testament · **pregnant** enceinte

legally married *légalement marié* · **a client** *un client* · **the funeral** *les funérailles*

Chapter Two · *The Family Council*

the elders les anciens · **debts** des dettes · **to agree** être d'accord · **a lock** une serrure · **a headmaster** un directeur d'école · **the same for everybody** la même pour tout le monde

May he rest in peace *Qu'il repose en paix* · **to shrug** *hausser les épaules* · **retired** *à la retraite*

Chapter Three · *The Voice of Today*

inheritance la succession, l'héritage · **Roman law** le droit romain · **conceived** conçu · **an heir** un héritier · **proof** la preuve · **a certificate** un certificat, un acte

the deceased *le défunt* · **in matters of** *en matière de* · **to win a case** / **to lose a case** *gagner / perdre un procès*

Chapter Four · *The Road to Bouaké*

a bus station une gare routière · **the facts** les faits · **a key** une clé · **to trust** faire confiance · **a witness** un témoin · **an authentic will** un testament authentique

for certain *avec certitude* · **to keep a promise** *tenir une promesse* · **aloud** *à voix haute*

Chapter Five · *The Notary's Register*

a register un registre · **a certified copy** une copie certifiée conforme · **the testator** le testateur · **a safe** un coffre-fort · **to leave something to someone** léguer quelque chose à quelqu'un · **a forgery** un faux

born or to be born *nés ou à naître* · **an authentic deed** *un acte authentique* · **I will see you in court** *on se verra au tribunal*

Chapter Six · *The Lawsuit*

a summons une assignation · **to sue** poursuivre en justice · **to cancel** annuler · **of sound mind** sain d'esprit · **a claim** une demande, une prétention · **a hearing** une audience

the court of first instance *le tribunal de première instance* · **actori incumbit probatio** *la preuve incombe au demandeur* · **a defense** *une défense*

Chapter Seven · *The Witnesses*

a medical file un dossier médical · **fully conscious** pleinement conscient · **to move** déménager · **testimony** le témoignage · **to threaten** menacer · **an offense** une infraction

to put one's affairs in order *mettre ses affaires en ordre* · **willing** *prêt, disposé à* · **an offense** *une infraction*

Chapter Eight · *The Hearing*

a courthouse un palais de justice · **a judge** un juge · **an usher** un huissier (d'audience) · **the claimant** le demandeur · **the bar** la barre · **reserved for judgment** mis en délibéré

Madam President *Madame la Présidente* · **to deliver a decision** *rendre une décision* · **an audience** *un public*

Chapter Nine · *Waiting*

case law la jurisprudence · **a judgment** un jugement · **whereas** attendu que · **to reject a claim** rejeter une demande · **the costs** les dépens · **to appeal** faire appel

for these reasons *par ces motifs* · **to carry out** *exécuter* · **in favor of** *au profit de*

Chapter Ten · *Espérance*

a newborn un nouveau-né · **the harmattan** l'harmattan · **to be ashamed** avoir honte · **to work the land** exploiter, travailler la terre · **a fair salary** un salaire juste · **to draft** rédiger

to trust someone with something *confier quelque chose à quelqu'un* · **born alive** *né vivant* · **to be right** *avoir raison*

Epilogue · *The Field by the River*

to pass with honors réussir avec mention · **a fishing line** une ligne de pêche · **a cocoa pod** une cabosse de cacao · **a share of the profit** une part du bénéfice · **a negotiator** un négociateur, une négociatrice · **a tenant** un locataire

to prepare the roof before the rain *préparer le toit avant la pluie* · **to be heavy with** *être chargé de* · **a landlord** *un propriétaire (bailleur)*

Questions de lecture

Répondez en anglais, puis vérifiez avec les réponses qui suivent.

Prologue · The Planter

1. What does the old family tradition say about land?
2. What did Konan do in Bouaké that afternoon?

Chapter One · First Saturday

1. Why does Gervais say that Akissi has no rights?
2. What important fact does Moussa discover?

Chapter Two · The Family Council

1. Who is Nanan Ahou, and what does she decide?
2. What clue does Mr. Kouamé give Akissi?

Chapter Three · The Voice of Today

1. Since when has inheritance been decided by the law and not by custom in Côte d'Ivoire, according to the chapter?
2. What three pieces of evidence does Maître Traoré want?

Chapter Four · The Road to Bouaké

1. According to Maître Traoré, why must a lawyer start with the facts?
2. Who were the two people present when Konan signed?

Chapter Five · The Notary's Register

1. What does the will leave to each person?
2. Why is it not a problem that Konan could not read?

Chapter Six · The Lawsuit

1. What is Gervais's new argument?
2. Who must prove that Konan was not of sound mind, and why?

Chapter Seven · The Witnesses

1. What does Dr. Fofana's file say about Konan one week before the will?
2. What does Maître Traoré do with the threatening message?

Chapter Eight · The Hearing

1. What is the difference between Maître Diby's speech and Maître Traoré's?

2. Why does Mrs. Gbané's answer convince the court that Konan understood his will?

Chapter Nine · Waiting

1. What does the professor say about custom and the law?
2. What does the court decide?

Chapter Ten · Espérance

1. Why does Akissi name her daughter Espérance?
2. What does Akissi propose to Gervais?

Epilogue · The Field by the River

1. According to Professor Kouadio, what was "the right question"?
2. What four lessons has Moussa learned this year?

Réponses

Prologue · The Planter

1. That a man's land goes to the son of his sister.
   Que la terre d'un homme revient au fils de sa sœur.
2. He went to the notary, Maître Dosso, and stayed inside for one hour.
   Il est allé chez le notaire, Maître Dosso, et y est resté une heure.

Chapter One · First Saturday

1. He says that, by custom, the nephew inherits, and that a wife without children has no rights.
   Il dit que, selon la coutume, c'est le neveu qui hérite et qu'une épouse sans enfants n'a aucun droit.
2. That Akissi is four months pregnant: Konan's child was conceived before his death.
   Qu'Akissi est enceinte de quatre mois : l'enfant de Konan a été conçu avant sa mort.

Chapter Two · The Family Council

1. She is Konan's elder sister and Gervais's mother; she says, according to custom, that the house and plantations go to Gervais.
   C'est la sœur aînée de Konan et la mère de Gervais ; elle

déclare, selon la coutume, que la maison et les plantations reviennent à Gervais.

2. Two years ago, Konan asked him to go to town with him one afternoon: she should look for that afternoon.
   Il y a deux ans, Konan lui a demandé de l'accompagner en ville un après-midi : elle devrait chercher cet après-midi-là.

Chapter Three · The Voice of Today

1. Since the reforms of 1964; today, there is also the law of 2019 on successions.
   Depuis les réformes de 1964 ; aujourd'hui, il y a aussi la loi de 2019 sur les successions.

2. The marriage certificate, a medical certificate for the pregnancy and the will.
   L'acte de mariage, un certificat médical de grossesse et le testament.

Chapter Four · The Road to Bouaké

1. Because the law is like a key: it is useless if you do not know which door you want to open.
   Parce que le droit est comme une clé : il ne sert à rien si l'on ne sait pas quelle porte on veut ouvrir.

2. Mr. Ernest Kouamé and Madam Gbané, the pharmacist.
   M. Ernest Kouamé et Madame Gbané, la pharmacienne.

Chapter Five · The Notary's Register

1. The house to Akissi; the two plantations, in equal shares, to his children born or to be born; the field by the river to Gervais.
   La maison à Akissi ; les deux plantations, à parts égales, à ses enfants nés ou à naître ; le champ près de la rivière à Gervais.
2. Because he dictated his will, the notary wrote it and read it back to him, and two witnesses signed.
   Parce qu'il a dicté son testament, que le notaire l'a écrit et le lui a relu, et que deux témoins ont signé.

Chapter Six · The Lawsuit

1. That his uncle was seriously ill, confused and not of sound mind when he made the will.
   Que son oncle était gravement malade, confus et n'était pas sain d'esprit quand il a fait son testament.
2. Gervais, because he is the one who asks the court to cancel the will: the one who makes a claim must prove it.
   Gervais, parce que c'est lui qui demande au tribunal d'annuler le testament : celui qui réclame doit prouver.

Chapter Seven · The Witnesses

1. Good general condition, fully conscious, asking many questions and joking with the nurses.

Bon état général, pleinement conscient, posant beaucoup de questions et plaisantant avec les infirmières.

2. She takes a photo of the screen, notes the number and the time, and decides to tell the judge and the police.
   Elle photographie l'écran, note le numéro et l'heure, et décide d'en informer le juge et la police.

Chapter Eight · The Hearing

1. Maître Diby speaks of tradition and illness; Maître Traoré speaks of dates and evidence.
   Maître Diby parle de tradition et de maladie ; Maître Traoré parle de dates et de preuves.

2. Because Konan corrected the notary when he read "the field near the road" instead of "the field by the river".
   Parce que Konan a corrigé le notaire quand celui-ci a lu « le champ près de la route » au lieu du « champ près de la rivière ».

Chapter Nine · Waiting

1. In matters of inheritance, the judge follows the law; custom can complete the law but cannot go against it.
   En matière de succession, le juge suit la loi ; la coutume peut compléter la loi, mais pas aller contre elle.

2. It rejects Gervais's claim, declares the will valid, orders that it be carried out, including for the unborn

child, and orders Gervais to pay the costs.
Il rejette la demande de Gervais, déclare le testament valable, en ordonne l'exécution, y compris pour l'enfant à naître, et condamne Gervais aux dépens.

Chapter Ten · Espérance

1. Because her father hoped for her before she existed, and because his will already spoke of children "born or to be born".
   Parce que son père l'a espérée avant qu'elle n'existe, et parce que son testament parlait déjà d'enfants « nés ou à naître ».
2. To help her work the cocoa plantations that now belong to Espérance, for a fair salary and with a written contract.
   De l'aider à exploiter les plantations de cacao qui appartiennent désormais à Espérance, contre un salaire juste et avec un contrat écrit.

Epilogue · The Field by the River

1. Who exists for the law, and from when.
   Qui existe pour le droit, et à partir de quand.
2. A lawyer starts with the facts; the one who makes a claim must prove it; a child who is conceived is treated as born; a good will is written with love, not with anger.
   Un avocat commence par les faits ; celui qui réclame doit

prouver ; un enfant conçu est considéré comme né ; un bon testament s'écrit avec amour, pas avec colère.

LEGAL STORIES FROM ABIDJAN · BOOK ONE

The Missing Will

Moussa Diarra is nineteen, a first-year law student, and nervous in his only tie. On his first Saturday as an intern in a small law firm in Abidjan, a young widow arrives from Bouaké. Her husband's nephew wants her house and the cocoa plantations, and custom seems to be on his side.

But Konan Yao, a planter who could not read, once pushed open a blue door near the big market. What did he sign there? And can a child who is not yet born inherit from a father who is already dead?

Un roman en anglais facile (niveau B1) pour découvrir la langue du droit à travers une histoire ivoirienne : succession, testament authentique, enfant à naître, preuve et procès.



ÉDITIONS LISÂN